Allentown SD Policy 815.1 (AI): Data and Student Privacy Passages

Excerpted verbatim from *Policy 815.1 - Use of Artificial Intelligence in Education (Allentown School District, Pennsylvania; Second Reading, adopted December 19, 2024)*. Page numbers refer to the PDF pages of the source file. Page numbers are PDF page numbers (the BoardDocs print-out footer shows the same numbering, for example 1/7). Ellipses (…) mark omitted text. Bracketed legal citation markers that appear in the source text have been left out where they interrupt a sentence.

Purpose

Source: page 1

The Board's policy on Artificial Intelligence (AI) aims to ensure the ethical and responsible use of AI technologies. This policy is designed to enhance teaching, learning and administrative processes while safeguarding student privacy and data security.

It also complies with relevant state and federal laws, regulations, Board policies, administrative regulations and school rules, including:

- Family Educational Rights and Privacy Act (FERPA).
- Individuals with Disabilities Education Act (IDEA).
- Health Insurance Portability and Accountability Act (HIPAA).
- Children’s Internet Protection Act (CIPA).
- Children’s Online Privacy Protection Act (COPPA).

Additionally, this policy aligns with Board policies on … student and personnel records, … data security …

Authority (excerpt)

Source: page 2

The district shall not be responsible for the dissemination, replication or alteration of information or data input by any student or staff into any Generative AI tool or resource.

Delegation of Responsibility (excerpt)

Source: page 2

The Executive Director of Technology will continually evaluate and authorize Generative AI tools and resources used in district schools and programs for age-appropriateness, bias, privacy protections, accessibility standards, student and staff safety, and data security.

The Board directs that only district-authorized Generative AI tools and resources may be used on district computers and in district schools and programs. Staff shall consult the district’s list of authorized Generative AI tools and resources prior to implementation in the educational environment. Unauthorized Generative AI tools and resources may not adhere to required data privacy, monitoring and security standards.

The district solicitor, in coordination with the Executive Director of Technology, shall evaluate new and existing vendor contracts, collective bargaining agreements, and related agreements for

impacts related to district use of Generative AI.

Definitions: Open-source AI (excerpt)

Source: page 2

Open-source AI – AI tools and resources that are built on publicly accessible platforms and use and share data among all users who access the platform, both within and outside of the district.

FERPA Compliance

Source: page 3

All teachers, administrators and staff are required to adhere strictly to the regulations outlined in the Family Educational Rights and Privacy Act (FERPA) when utilizing any AI resources.

The district prohibits the use of personally identifiable information of students while using AI websites, tools or applications that have not been pre-approved by the Executive Director of Technology or his/her designee. The Executive Director of Technology shall establish an efficient process by which teachers and administrators can request the approval of new AI resources. The Executive Director of Technology or designee shall maintain a public list of all such approved resources.

Ethical Considerations (excerpt)

Source: page 3

The district shall only authorize Generative AI systems and platforms appropriately equipped for preventing breach of personally identifiable information and addressing the district's prohibitions against discrimination, harassment, bullying, bias and access to sexually explicit materials, or those which are harmful to minors or prohibited by Board policy.

The district's technology protection measures shall be enforced during use of Generative AI on district computers and network resources.

Evaluation and Monitoring of Generative AI (excerpt)

Source: pages 4–5

Administrators, network supervisors and teaching staff shall establish processes for ongoing evaluation and monitoring of Generative AI tools and resources used within the district and on … district computers and network resources, including periodic assessments of the impact on student learning.

Grading Student Work (excerpt)

Source: page 5

Teachers shall ensure that personally identifiable student records are kept secure when using such grading technology.

Professional Development (excerpt)

Source: pages 5–6

The training should equip educators, administrators and staff with the knowledge and skills necessary to integrate AI tools into their roles in the district, while also addressing data privacy, legal … compliance and ethical considerations.

Consequences for Inappropriate Use (excerpt)

Source: page 6

Students and staff must immediately report any violations or suspicious activity to the building principal or designee.

Illegal use of Generative AI, intentional modification without permission or damage to files or data belonging to others, copyright violations, and theft of services shall be reported to the appropriate legal authorities for possible prosecution.